

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Teecie Dove	Team: Squad #02	CCRB Case #: 202204631	☐ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 06/30/2022 11:09 PM, Friday, 07/01/2022 3:45 AM, Thursday, 05/04/2023 10:07 AM	Location of Incident: § 87(2)(b) 121st Precinct stationhouse; CCRB	18 Mo. SOL 1/1/2024	Precinct: 121		
Date/Time CV Reported Fri, 07/01/2022 5:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/14/2022 4:25 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Olsen Hoxha	05542	949119	121 PCT
2. SGT John Iskaros	00249	953989	121 PCT
3. LT Florin Kuka	00000	936047	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Mehmet Gurpinar	28509	967913	121 PCT
2. PO Joseph Priolo	06894	964711	121 PCT
3. PO Michael Petrino	04818	964703	121 PCT
4. PO Jose Tabora	17232	943856	121 PCT
5. PO Thomas Lawson	17540	951903	121 PCT
6. PO Nijaz Hasanbegovic	05238	964546	121 PCT
7. PO Jhonny Franco	17494	958603	121 PCT
8. PO Joseph Siciliano	13074	966339	121 PCT
9. PO David Vazquez	20393	959337	121 PCT
10. PO Jessica Cavallo	20927	971365	121 PCT
11. PO Alexandra Florida	08608	956651	BK SVS
12. PO Tiffani Means	24351	967201	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Florin Kuka	Abuse: On June 30th, 2022, at § 87(2)(b) in Staten Island, Lieutenant Florin Kuka stopped § 87(2)(b)	A . Within NYPD Guidelines
B . SGT Olsen Hoxha	Abuse: On June 30th, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha frisked § 87(2)(b)	B . Within NYPD Guidelines
C . SGT Olsen Hoxha	Abuse: On June 30th, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha searched § 87(2)(b)	C . Unfounded
D . SGT Olsen Hoxha	Abuse: On June 30th, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha searched the vehicle in which § 87(2)(b) was an occupant.	D . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
E . LT Florin Kuka	Abuse: On June 30th, 2022, at § 87(2)(b) in Staten Island, Lieutenant Florin Kuka seized § 87(2)(b) property.	E . Within NYPD Guidelines
F . SGT John Iskaros	Discourtesy: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant John Iskaros spoke discourteously to § 87(2)(b)	F . Substantiated
G . SGT John Iskaros	Off. Language: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant John Iskaros made remarks to § 87(2)(b) based upon race.	G . Substantiated
H . SGT John Iskaros	Discourtesy: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant John Iskaros acted discourteously toward § 87(2)(b)	H . Substantiated
I . SGT John Iskaros	Abuse: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant John Iskaros made sexually suggestive gestures towards § 87(2)(b)	I . Substantiated
J . SGT John Iskaros	Off. Language: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant John Iskaros made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	J . Substantiated
K . SGT Olsen Hoxha	Discourtesy: On July 1st, 2022, at the 121st Precinct stationhouse, Sergeant Olsen Hoxha gestured discourteously toward § 87(2)(b)	K . Unfounded
L . SGT John Iskaros	Untruthful Stmt.: On May 4th, 2023, Sergeant John Iskaros provided a false official statement to the CCRB.	L . Substantiated

Case Summary

§ 87(2)(b) filed this complaint via IAB on July 1st, 2022. It was received by the CCRB on July 14th, 2022.

On June 30th, 2022, at approximately 11:09 PM, Lieutenant Florin Kuka of the 121st Precinct stopped § 87(2)(b) outside § 87(2)(b) in Staten Island after receiving a complaint that § 87(2)(b) menaced § 87(2)(b) with a firearm (**Allegation A: Abuse of Authority – Stop, Within NYPD Guidelines**). § 87(2)(b) denied having a weapon and provided consent for Sergeant Olsen Hoxha of the 121st Precinct to search him. Sergeant Hoxha frisked § 87(2)(b) waistband and allegedly reached into § 87(2)(b) pants pockets to retrieve his car keys (**Allegation B: Abuse of Authority – Frisk, Within NYPD Guidelines**) (**Allegation C: Abuse of Authority – Search, Unfounded**). Sergeant Hoxha asked § 87(2)(b) if officers could search his vehicle, which was parked nearby, and § 87(2)(b) consented (**Allegation D: Abuse of Authority – Vehicle Search, Within NYPD Guidelines**). Sergeant Hoxha ordered Police Officer Jose Tabora and Police Officer Thomas Lawson to search § 87(2)(b) vehicle, and no firearm was recovered during this search. § 87(2)(b) was brought to the scene by Police Officer Mehmet Gurpinar of the 121st Precinct, where § 87(2)(b) positively identified § 87(2)(b) as the alleged perpetrator. Lieutenant Kuka ordered officers to arrest § 87(2)(b) and seize his vehicle, which was taken back to the 121st Precinct stationhouse (**Allegation E: Abuse of Authority – Property Seizure, Within NYPD Guidelines**). § 87(2)(b) was charged with criminal possession of a weapon in the 2nd degree, reckless endangerment in the 2nd degree, and menacing in the 3rd degree (**BR 14**).

At approximately 3:45 AM on July 1st, 2022, § 87(2)(b) was in the holding cells of the 121st Precinct stationhouse when Sergeant John Iskaros entered the room and kicked § 87(2)(b) cell door. Sergeant Iskaros and § 87(2)(b) engaged in an argument, during which Sergeant Iskaros allegedly told § 87(2)(b) “You’re acting like a fucking monkey,” Sergeant Iskaros then began making monkey noises and imitating a monkey with his movements (**Allegation F: Discourtesy – Word, Substantiated**) (**Allegation G: Offensive Language – Race, Substantiated**) (**Allegation H: Discourtesy – Action, Substantiated**). Sergeant Iskaros then made sexually suggestive gestures to § 87(2)(b) by miming masturbation and other sex acts (**Allegation I: Abuse of Authority – Sexual Misconduct (Sexual Harassment – Gesture), Substantiated**). Sergeant Iskaros called § 87(2)(b) a “bitch” twice during this argument (**Allegation J: Offensive Language – Gender, Substantiated**). Sergeant Hoxha allegedly mocked § 87(2)(b) by imitating a crying person (**Allegation K: Discourtesy – Gesture, Unfounded**).

On May 4th, 2023, Sergeant Iskaros provided a false official statement to the CCRB (**Allegation L: Untruthful Statement – False Official Statement, Substantiated**).

Body-worn camera (BWC) footage was received from the BWCs of Lieutenant Kuka (**BR 01**), Sergeant Hoxha (**BR 02**), Police Officer Lawson (**BR 03**), Police Officer Tabora (**BR 04**), Police Officer Gurpinar (**BR 04**), Police Officer Joseph Priolo (**BR 04**), Police Officer Michael Patrino (**BR 04**), and Police Officer Nijaz Hasanbegovic (**BR 04**). This footage is summarized in IA #65 (**BR 05**).

Stationhouse footage was received from the 121st Precinct stationhouse (**BR 06**), including footage covering the 1st Floor cell area (**BR 07**) and the 1st Floor cell #3 (**BR 08**). This footage is summarized in IA #72 (**BR 09**).

Findings and Recommendations

Allegation (A) Abuse of Authority: On June 30, 2022, at § 87(2)(b) in Staten Island, Lieutenant Florin Kuka stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On June 30, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha frisked § 87(2)(b)

Allegation (C) Abuse of Authority: On June 30, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha searched § 87(2)(b)

Allegation (D) Abuse of Authority: On June 30, 2022, at § 87(2)(b) in Staten Island, Sergeant Olsen Hoxha searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: On June 30, 2022, at § 87(2)(b) in Staten Island, Lieutenant Florin Kuka seized § 87(2)(b) property.

§ 87(2)(b) was interviewed by the CCRB on August 2nd, 2022 (BR 10). Sergeant Hoxha (BR 11) and Sergeant Iskaros (BR 12) were interviewed on May 4th, 2023. Lieutenant Kuka was interviewed on July 11th, 2023 (BR 13).

It is undisputed that, prior to being stopped by officers, § 87(2)(b) was in his vehicle, a black Dodge Charger with license plate #§ 87(2)(b) when he engaged in a dispute with an individual identified by the investigation as § 87(2)(b). During this dispute, § 87(2)(b) threatened to fight § 87(2)(b) and § 87(2)(b) drove away. Approximately 20 minutes later, § 87(2)(b) was sitting outside of a deli at § 87(2)(b) where he was stopped by Lieutenant Kuka and Sergeant Hoxha who questioned him about weapons. Sergeant Hoxha explained § 87(2)(b) complaint, in which § 87(2)(b) alleged that, during their dispute, § 87(2)(b) pulled a gun out of his fanny pack and used the weapon to menace § 87(2)(b) to § 87(2)(b). § 87(2)(b) denied having pulled out a firearm but admitted to threatening to fight § 87(2)(b). § 87(2)(b) denied having possessed a firearm in general. Sergeant Hoxha asked § 87(2)(b) where his fanny pack was, and § 87(2)(b) explained that it was in his vehicle, which was parked nearby. Sergeant Hoxha asked § 87(2)(b) for permission to search his vehicle, and § 87(2)(b) provided his consent. Police Officer Lawson and Police Officer Tabora searched his vehicle, including the fanny pack, which was in the front passenger's seat. No firearm was recovered from this search. Sergeant Hoxha asked § 87(2)(b) if he "had anything on him," and § 87(2)(b) said no. § 87(2)(b) offered consent for Sergeant Hoxha to search him, and Sergeant Hoxha did so. No firearm was recovered during this frisk. The officers then canvassed the nearby area, including a nearby alleyway and trashcans, in search of the alleged firearm, but no such weapon was recovered. Lieutenant Kuka ordered officers to arrest § 87(2)(b) for menacing and to seize his vehicle as arrest evidence. Both § 87(2)(b) and his vehicle were taken to the 121st Precinct stationhouse.

§ 87(2)(b) stated that, as Sergeant Hoxha frisked him, Sergeant Hoxha reached into § 87(2)(b) pants pockets and retrieved his car keys.

Both Lieutenant Kuka and Sergeant Hoxha stated that they did not know which officer initially took § 87(2)(b) complaint. This unidentified officer relayed information provided by § 87(2)(b) to Sergeant Hoxha and Lieutenant Kuka. This information included the incident location, a description of § 87(2)(b) a description of his vehicle, and the license plate number of § 87(2)(b) vehicle. Sergeant Hoxha denied having searched § 87(2)(b) pockets for his car keys. While they were on the scene, Police Officer Gupinar and Police Officer Hasanbegovic brought § 87(2)(b) to the scene to perform a show-up. Sergeant Hoxha spoke to § 87(2)(b) who confirmed that § 87(2)(b) was the individual who had menaced him with a firearm. § 87(2)(b) told Sergeant Hoxha that he would like to press charges against § 87(2)(b). Lieutenant Kuka decided to arrest § 87(2)(b) for menacing. Lieutenant Kuka ordered officers to seize § 87(2)(b).

§ 87(2)(b) vehicle for arrest evidence, because it was allegedly used in the commission of a crime.

Sergeant Hoxha's BWC footage (**BR 02**) shows that, at timestamp 01:00, Sergeant Hoxha approaches § 87(2)(b) who is sitting on steps in front of a deli, and asks him, "Do you have ID on you?" Sergeant Hoxha asks § 87(2)(b) if he had been in an argument earlier, and § 87(2)(b) explains that § 87(2)(b) had blocked § 87(2)(b) car from exiting his driveway. § 87(2)(b) then exited his car and looked "like he wanted to fight," and § 87(2)(b) approached § 87(2)(b) and said, "What's up, you want to fight?" § 87(2)(b) then left the scene.

After § 87(2)(b) explains this, Sergeant Hoxha tells him that it was alleged that § 87(2)(b) pulled a firearm on § 87(2)(b) states that he did not have a firearm, but he had his fanny pack in his hand. He then put his fanny pack on the seat of his car before approaching § 87(2)(b). Sergeant Hoxha asks where § 87(2)(b) fanny pack is, and § 87(2)(b) states, "It's right there in the car." He points to his vehicle, which is parked nearby. Sergeant Hoxha asks, "Do you mind if we check the car?" § 87(2)(b) says yes. Sergeant Hoxha asks again, "You give us consent to search your whole car?" § 87(2)(b) again says yes. Sergeant Hoxha asks if § 87(2)(b) vehicle is unlocked, and § 87(2)(b) says yes. Police Officer Tabora and Police Officer Lawson open the doors to § 87(2)(b) vehicle and search the vehicle. At timestamp 02:20, Sergeant Hoxha asks § 87(2)(b) "You don't got anything on you, right?" § 87(2)(b) stands up and states, "Search me and everything." He holds his arms out and Sergeant Hoxha frisks his waistband. Sergeant Hoxha never reaches into § 87(2)(b) pockets.

At timestamp 02:10 in Police Officer Lawson's BWC footage (**BR 03**), § 87(2)(b) vehicle is parked approximately 15-20 feet away from officers. The vehicle is turned off, but the doors are unlocked. Police Officer Lawson and Police Officer Tabora open the car doors and search § 87(2)(b) vehicle, including the front and back seats, the door pockets, the glove compartment, and the center console. Police Officer Tabora searches § 87(2)(b) fanny pack, which is in the front passenger seat. The officers do not recover a firearm during their search.

At 06:50 in Sergeant Hoxha's BWC footage (**BR 02**), officers canvas the nearby area in search of a firearm. Sergeant Hoxha and Lieutenant Kuka search a nearby alley, including dumpsters. No firearm is recovered during their search. At timestamp 08:50, Sergeant Hoxha tells Lieutenant Kuka that § 87(2)(b) could have hidden the firearm anywhere. Lieutenant Kuka states, "Yeah, he lives right there. He could have just went home and dropped it off."

At timestamp 13:10 in Lieutenant Kuka's BWC footage (**BR 01**), Lieutenant Kuka tells Police Officer Lawson that he believes § 87(2)(b) claim that § 87(2)(b) flashed a firearm is "bullshit." Lieutenant Kuka states that if § 87(2)(b) had a firearm "he wouldn't be standing out here." At timestamp 13:40, after speaking with § 87(2)(b) Sergeant Hoxha approaches Lieutenant Kuka and tells him that § 87(2)(b) is "one-thousand percent sure" that he saw § 87(2)(b) pull out a firearm, and he wants to press charges against § 87(2)(b). Lieutenant Kuka states that they will arrest § 87(2)(b) for menacing. Lieutenant Kuka states, "We'll bring his car, also, just to double-check, because I don't know if there is a hidden compartment."

A complaint report prepared by Police Officer Gurpinar (**BR 16**) shows that § 87(2)(b) reported that an individual menaced him with a firearm from a black Dodge Charger with license plate #§ 87(2)(b). A stop report prepared by Police Officer Priolo (**BR 17**) states that § 87(2)(b) described the perpetrator as "a black male wearing a blue shirt with black jeans, blue sneakers, and a black hat..." It notes that § 87(2)(b) provided consent to search.

Per People v. De Bour (**BR 18**), a civilian tip alleging criminality is sufficient to establish

reasonable suspicion of criminality if the tip is made non-anonymously, communicated personally by the civilian, and the information provided is specific and detailed. Subsequently, upon receiving such a tip, officers are entitled to perform a Level 3 stop of the alleged perpetrator, during which officers “may ask accusatory or pointed questions and detain the person while an expeditious investigation is conducted to determine if there is probable cause to arrest the person.” Patrol Guide Procedure 212-11 (BR 19). If there is reasonable suspicion that the alleged perpetrator is “armed and dangerous,” officers are entitled to frisk the individual during the stop. Additionally, assuming that these conditions are met, officers may seek consent to search the individual’s person or belongings, but the individual maintains the right to refuse.

While the courts have established that warrantless searches of vehicles are a violation of the Fourth Amendment, exceptions to this rule include the “automobile exception,” which permits the warrantless search of a vehicle when there is probable cause to believe that said vehicle contains evidence of a crime. People v. Galak, 81 N.Y.2d 463 (1993) (**BR 20**) The same threshold of probable cause is necessary in the temporary holding of a vehicle prior to a warrant being obtained. People v. Singleteary, 35 N.Y.2d 528 (1974) (**BR 21**).

NY CLS Penal Law 120.15 (**BR 22**) defines menacing in the third degree as any instance in which a person “intentionally places or attempts to place another person in fear of death, imminent serious physical injury or physical injury.” NY CPS Penal Law 120.14 (**BR 23**) identifies second degree menacing as any act of menacing during which a deadly weapon or dangerous instrument is displayed.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) Sergeant Hoxha’s BWC footage, there is no evidence to support § 87(2)(b) claim that Sergeant Hoxha searched his pockets during this frisk, or at any point prior to § 87(2)(b) being placed under arrest. It is therefore recommended that **Allegation C** be **Unfounded**.

Sergeant Hoxha’s BWC shows that, upon being asked, § 87(2)(b) provided his consent for officers to search his vehicle. Sergeant Hoxha asked § 87(2)(b) multiple times and described the scope of this search to § 87(2)(b) as including his entire vehicle; each time he was asked, § 87(2)(b) consented to his vehicle being searched, § 87(2)(g). It is therefore recommended that **Allegation D** be closed as **within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

Allegation (F) Discourtesy: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant John Iskaros spoke discourteously to § 87(2)(b)

Allegation (G) Offensive Language: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant John Iskaros made remarks to § 87(2)(b) based upon race.

Allegation (H) Discourtesy: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant John Iskaros acted discourteously toward § 87(2)(b)

Allegation (I) Abuse of Authority: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant John Iskaros made sexually suggestive gestures towards § 87(2)(b)

Allegation (J) Offensive Language: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant John Iskaros made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (K) Discourtesy: On July 1, 2022, at the 121st Precinct Stationhouse, Sergeant Olsen Hoxha gestured discourteously toward § 87(2)(b)

§ 87(2)(b) stated that, while in the 121st Precinct stationhouse holding cells, he kicked the cell doors. Sergeant Iskaros entered the room and began arguing with § 87(2)(b). Sergeant Iskaros stated, “Suck it up, man. You’re a tough man.” § 87(2)(b) continued kicking the cell doors, and Sergeant Iskaros stated, “Why are you acting like a fucking monkey? You’re a fucking monkey.” Sergeant Iskaros then began making monkey noises and gestures imitating a monkey’s movements. § 87(2)(b) observed Sergeant Hoxha, through a window between the cell area and the rest of the stationhouse, standing by the front desk, smiling at § 87(2)(b) and making “crybaby motions” with his hands “in the way kids do.”

A subclip of the stationhouse footage of the holding cells within 121st Precinct stationhouse (**BR 07**) shows, at timestamp 01:32, § 87(2)(b) in a holding cell and kicking the cell doors when Sergeant Iskaros enters the room. Sergeant Iskaros appears to be yelling as he enters. Within seconds, Sergeant Iskaros approaches § 87(2)(b) cell and kicks the cell door. Sergeant Iskaros puffs out his chest and continues yelling at § 87(2)(b). Sergeant Iskaros then crouches slightly and claps his hands before pointing at § 87(2)(b). Sergeant Iskaros then uses his right hand to make a loose fist, and he moves this fist back and forth in front of his pelvis in a gesture commonly used to denote masturbation. He then thrusts his pelvis toward § 87(2)(b) in a gesture commonly used to denote a sex act. Sergeant Iskaros again crouches slightly and claps his hands. He opens his mouth wide and shakes his head back and forth. He then grabs the thighs of his pant legs and shakes them as his mouth is open and he shakes his head. Sergeant Iskaros makes these same gestures multiple times throughout his interaction with § 87(2)(b). At timestamp 02:45, Sergeant Iskaros appears to say to § 87(2)(b) “You’re a bitch.” He appears to say the word “bitch” twice. While there is no audio, this portion of the footage clearly captures Sergeant Iskaros’s mouth, and he is enunciating the words clearly. At timestamp 04:10, Sergeant Hoxha enters the room, and Sergeant Iskaros kicks § 87(2)(b) cell door again approximately four more times. Sergeant Hoxha interacts with § 87(2)(b) for approximately four minutes before leaving the room. During this time, Sergeant Hoxha never makes any gesture imitating a crying person.

A subclip of the stationhouse footage of the holding cells within the 121st Precinct stationhouse (**BR 08**) capturing Sergeant Iskaros’s interaction with § 87(2)(b) from a different angle, shows, at timestamp 02:40, § 87(2)(b) in the holding cell and kicking the door when Sergeant Iskaros enters the room. § 87(2)(b) is flailing his arms and crouching down. Sergeant Iskaros then begins

to imitate these movements. § 87(2)(b) begins clapping his hands, and immediately after Sergeant Iskaros does the same. Sergeant Iskaros then begins to make the same movements and gestures as described above.

Stationhouse footage from the fingerprinting area of the 121st Precinct stationhouse cells (**BR 31**) captures the desk area through the large glass windows on the wall between the cell area from the rest of the stationhouse for the entirety of § 87(2)(b) in the cells. At no point is Sergeant Hoxha observed through the window making any gesture imitating a crying person.

Sergeant Iskaros testified that he was working as the desk officer while § 87(2)(b) was in the holding cells. Sergeant Iskaros heard a loud bang and screaming, and he believed § 87(2)(b) may have injured himself. Sergeant Iskaros entered the room and asked § 87(2)(b) if he needed medical attention. § 87(2)(b) began kicking the cell doors and stated, “Suck my dick, you faggot spic.” Sergeant Iskaros told § 87(2)(b) to stop kicking the door or he would hurt himself. He also stated, “Stop calling me a faggot. Stop telling me to suck your dick.” Sergeant Iskaros did not recall whether he used any profanity aside from repeating what § 87(2)(b) said.

After reviewing the stationhouse footage, Sergeant Iskaros stated that he kicked § 87(2)(b) cell door because § 87(2)(b) was kicking it, and Sergeant Iskaros was trying to tell him to stop. His purpose of kicking the cell door was to show § 87(2)(b) that it was painful. Sergeant Iskaros stated that he made gestures miming sex acts while speaking to § 87(2)(b) because § 87(2)(b) told him, “Suck my dick.” Sergeant Iskaros made these gestures as a means of telling § 87(2)(b) to stop making those comments. Sergeant Iskaros denied ever having called § 87(2)(b) a monkey or imitating a monkey in front of § 87(2)(b). Sergeant Iskaros stated that his movements as shown in the stationhouse footage were subconscious gestures and a result of him “growing up in New York City.” These gestures were not done with the purpose of imitating a monkey or mimicking § 87(2)(b). Sergeant Iskaros denied ever having made monkey noises at § 87(2)(b). Sergeant Iskaros denied ever having called § 87(2)(b) a “bitch.” Sergeant Iskaros was unable to provide an alternate explanation of what he said to § 87(2)(b) in the portion of the stationhouse where he appears to be mouthing the word, “Bitch.”

Both Sergeant Iskaros and Sergeant Hoxha stated that Sergeant Hoxha never made any gestures imitating a crying person towards § 87(2)(b).

Patrol Guide Procedure 200-02 (BR 24) states that officers must perform their duties with “courtesy and civility,” and they must “respect the dignity of each individual” with which they interact. Officers are to “maintain a higher standard of integrity than is generally expected of others.” Per PD v. Pichardo, DCT Case Number 2015-15012 (**BR 25**) officers are prohibited from using profanity toward civilians unless “in the context of a dynamic situation over which [they are] attempting to gain control.” Such profanity may not be used when it “[serves] no legitimate purpose but to belittle” a civilian.

Administrative Guide 304-06 (BR 26) details prohibited conduct for members of the service, which includes “using discourteous or disrespectful remarks regarding another person’s... ethnicity, race... [or] gender...” Per Administrative Guide 332-01 (BR 27), “sexual harassment includes, but is not limited to, sexually suggestive remarks, pictures, [and] gesturing...”

§ 87(2)(g)

§ 87(2)(b) Sergeant Iskaros is clearly yelling and behaving discourteously toward § 87(2)(b) and in combination

with Sergeant Iskaros not refuting his alleged use of profanity, § 87(2)(g)

It is therefore recommended that **Allegations F be Substantiated.**

While Sergeant Iskaros testified that the movements he made toward § 87(2)(b) which consisted of him crouching down slightly, gripping and shaking his pant legs, opening his mouth wide while shaking his head back and forth, bouncing up and down, and clapping his hands—were a part of his typical subconscious gestures and were not used as a means of mocking § 87(2)(b) the stationhouse footage shows that these movements were in direct response to § 87(2)(b) own movements, and Sergeant Iskaros often made the same gestures moments after § 87(2)(b) initially did so. Additionally, Sergeant Iskaros did not make these same movements during any other portion of the stationhouse footage. Therefore, the investigation determined that Sergeant Iskaros was not credible in his testimony that these gestures were not used to mimic § 87(2)(b) own movement. Further, Sergeant Iskaros’s movements were consistent with § 87(2)(b) testimony that Sergeant Iskaros was imitating a monkey, and his head movements were consistent with § 87(2)(b) testimony that Sergeant Iskaros was making monkey noises. § 87(2)(g)

It is therefore recommended that **Allegations G, H and J be Substantiated.**

Given that the stationhouse footage shows Sergeant Iskaros making gestures commonly used to denote sex acts, and that Sergeant Iskaros testified that the purpose of these gestures was to denote said acts in direct response to § 87(2)(b) telling Sergeant Iskaros to “Suck my dick,” § 87(2)(g)

It is therefore recommended that **Allegation I be Substantiated.**

Given that stationhouse footage, which captures the entirety of § 87(2)(b) time in the holding cells, did not show Sergeant Hoxha making gestures imitating a crying person, as alleged by § 87(2)(b) it is recommended that **Allegation K be closed as Unfounded.**

Allegation (L) Untruthful Statement: On May 4th, 2023, Sergeant John Iskaros provided a false official statement to the CCRB.

As mentioned above, after watching stationhouse footage, Sergeant Iskaros testified that he never referred to § 87(2)(b) as a monkey, nor did he make any gestures or movements mimicking a monkey. Sergeant Iskaros described his movements—which consisted of him crouching down slightly, gripping and shaking his pant legs, opening his mouth wide while shaking his head back and forth, bouncing up and down, and clapping his hands—as subconscious gestures resulting from his upbringing in New York City. Sergeant Iskaros was unable to provide a reason beyond this as to why he made these gestures toward § 87(2)(b) Sergeant Iskaros testified that these gestures were

a part of his normal behavior despite stationhouse footage showing that Sergeant Iskaros was imitating § 87(2)(b) as he was making these movements.

Sergeant Iskaros also testified that he did not call § 87(2)(b) a “bitch,” but he was unable to provide an alternative explanation of what he said to § 87(2)(b) during the portion of the stationhouse footage that appeared to clearly show Sergeant Iskaros enunciating the word “bitch.”

Per Administrative Guide 304-10 (BR 28), officers are prohibited from intentionally making a statement they know to be untrue when it is material to the outcome of an investigation.

§ 87(2)(g)

it is recommended that **Allegation L** be **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Sergeant Hoxha has been a member of service for thirteen years and has been a subject in two previous CCRB complaints and two previous allegations, none of which were substantiated.
§ 87(2)(g)
- Lieutenant Kuka has been a member of service for eighteen years and has been a subject in seven previous CCRB complaints and seventeen previous allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Iskaros has been a member of service for ten years and has been a subject in five previous CCRB complaints and ten previous allegations, none of which were substantiated.
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 22nd, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 30).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Investigator:		Investigator Teecie Dove	08/31/2023
	Signature	Print Title & Name	Date

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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